

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement ("Agreement") is entered into on January 15, 2025 ("Effective Date") by and between:

Party A:

ABC Technologies Private Limited

Registered Office: Bangalore, Karnataka, India

and

Party B:

John Doe

Software Engineer

New Delhi, India

1. Purpose

The parties wish to explore a potential business relationship involving confidential technical, commercial, and business information. This Agreement establishes the terms under which such confidential information shall be protected.

2. Definition of Confidential Information

Confidential Information includes all technical documents, source code, software architecture, product designs, customer information, financial information, pricing, business strategies, research materials, and any other information disclosed by either party, whether written, oral, electronic, or visual.

3. Obligations of Receiving Party

The Receiving Party agrees to:

- Maintain strict confidentiality.
- Use Confidential Information solely for evaluating the proposed business relationship.
- Not disclose Confidential Information to any third party without prior written consent.
- Protect Confidential Information using reasonable security measures.

4. Exclusions

Confidential Information shall not include information that:

- Is publicly available without breach of this Agreement.
- Was already lawfully known by the Receiving Party.
- Is independently developed without reference to Confidential Information.
- Is disclosed pursuant to a legal obligation.

5. Term

This Agreement shall remain effective for two (2) years from the Effective Date.

The confidentiality obligations shall survive for five (5) years after termination of this Agreement.

6. Termination

Either party may terminate this Agreement by providing thirty (30) days prior written notice.

Upon termination, the Receiving Party shall immediately cease use of all Confidential Information and return or destroy all confidential materials upon request.

7. Intellectual Property

All Confidential Information remains the exclusive property of the Disclosing Party.

Nothing in this Agreement grants any ownership rights, licenses, or intellectual property rights to the Receiving Party.

8. Liability

The Receiving Party acknowledges that unauthorized disclosure may result in irreparable harm.

The liability of either party under this Agreement shall not exceed INR 5,00,000 except in cases involving fraud, willful misconduct, or breach of confidentiality obligations.

9. Indemnification

Each party agrees to indemnify and hold harmless the other party against losses arising directly from its breach of this Agreement.

10. Non-Compete

During the term of this Agreement and for six (6) months after termination, the Receiving Party shall not directly engage in competing business activities involving the confidential project without prior written approval.

11. Governing Law

This Agreement shall be governed by and interpreted in accordance with the laws of India.

Any disputes shall be subject to the exclusive jurisdiction of the courts located in Bengaluru, Karnataka.

12. Entire Agreement

This Agreement constitutes the entire understanding between the parties regarding confidential information and supersedes all prior agreements.

13. Signatures

For ABC Technologies Private Limited

Name: Rahul Sharma

Title: Director

Signature: _____

Date: January 15, 2025

For John Doe

Signature: _____

Date: January 15, 2025